



POLICE DEPARTMENT

March 17, 2008

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer Ralph Gonzalez
Tax Registry No. 928402
Transit District No. 30
Disciplinary Case No. 83222/07

The above-named member of the Department appeared before me on November 8, 2007 and November 28, 2007, charged with the following:

1. Said Police Officer Ralph Gonzalez, on or about April 17, 2006, at or about 1000 hours, while on duty, inside Transit District 30 offices, Brooklyn, New York, did use excessive force against an individual known to this Department, in that he wrongfully struck him in the face with an open hand.

P.G. 203-11, Page 1, Paragraph 2 - FORCE

The Department was represented by Mary Lynne Frey, Esq., Department Advocate's Office, and the Respondent was represented by Craig Hayes, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department offered the out-of-court Civilian Complaint Review Board (CCRB) statements made by Walter Hatim and Gina Davis on May 8, 2006; and by Kimberly Davis on May 3, 2006. The corresponding tapes and transcripts were admitted into evidence under Department's Exhibits (DX) 1 and 1A, DX 2 and 2A, and DX 3 and 3A, respectively. The Department called Police Officer Gary Stopa as its witness.

The Complainants

The Assistant Department Advocate (Advocate) informed the Court that she scheduled interviews with Hatim and his mother Gina Davis. The interviews never took place because they did not appear at the Advocate's office. The Advocate made daily phone calls to the Davis residence over a three week period, prior to trial, starting October 17, 2007 and left messages. On three occasions, the Advocate was able to speak to Ms. Davis and made three appointments scheduled around her work schedule for her and her son, Hatim, to be interviewed. According to the Advocate, "none of those appointments came to fruition." When they did not appear, the Advocate called Davis and spoke to her on two of the occasions and made subsequent appointments. One reason given by Davis for not keeping an appointment was that there was a death in the family. Each time the Advocate spoke to Davis she assured the Advocate that she would come to her office with Hatim and speak with her.

The Advocate subsequently had a subpoena served on Davis and Hatim, by the Department's Litigation Support Unit on November 6, 2007, and Davis at that point

assured them that she would appear for trial. At one point, the Advocate also spoke with Hatim on the telephone and he also assured the Advocate that he would appear with his mother. For reasons unknown to the Advocate, Davis and Hatim did not appear for trial. (See Trial Transcript Pages 8-19 for the full record regarding the Complainants non-appearance.)

Walter Hatim

Hatim is a [REDACTED] who lives with [REDACTED] Gina Davis.

During his May 8, 2006 interview with CCRB, he recalled that on April 17, 2006, he entered a subway train with his friends Dean, Donald, David and Maurice. There they became embroiled in an altercation with an adult, white, tattooed male who was with two females and two small children. The male, whom Hatim did not know, accused him and his friends of hitting the children. According to Hatim, the male, who proclaimed himself to be a Latin King gang member, punched David in the face with a closed fist. A free-for-all then ensued. As the train approached the Jay Street/Borough Hall station, another male, also tattooed and sporting a pierced lip, pulled out a knife and swung it at Hatim's throat. Hatim jumped back and then hit the knife-wielding male. He stated that David also had a knife which he held while fighting with the other male.

At some point the police were summoned and were waiting on the Jay Street station platform when the train pulled in. According to Hatim, David discarded the knife in the space between the train and the platform, and Donald ran off. Hatim, David, Daniel, and Maurice attempted to flee, but were apprehended at the top of a staircase by police and brought back down to the platform. They were all arrested at the request of

the male with the family and placed in handcuffs. He stated that the police also arrested the knife-wielding male, but let the male with the family go.

According to Hatim, he, David, and Daniel were placed in a van. He estimated that a total of five male officers were involved in the arrest and that two of them accompanied them in the van to the station house. He acknowledged that these two officers were white and that one was "chubby." It was Hatim's belief that these two officers were detectives because they were in plainclothes. He did not learn their names.

Hatim acknowledged that upon arriving at the station house they were frisked and searched. He denied that the officer who searched him found anything on him, but recalled that a knife was found on Daniel. Hatim stated that they were then taken into a room where they were each handcuffed to a separate chair. He further stated that a male "Chinese" police officer in plainclothes was in the room doing paperwork. According to Hatim, "the chubby guy" (one of the arresting officers) entered the room and said, "[I] need something for these damn kids."¹ At which point, explained Hatim, "I sucked my teeth....everybody started laughing then...everybody sucked their teeth...sucked their teeth again. And I then I look at him, David he had a look at him, and he had one hand...on his face he slapped me with the other." Hatim acknowledged that when he sucked his teeth at the officer the other boys started laughing, "and he was like 'stop laughing.' I sucked them again, everybody sucked their teeth.... He put his hand on my face and slapped me with the other hand." During the course of this interview, Hatim was asked the following questions and gave the following answers:

Q. So he put, which hand did he put on your face?

¹ During the course of this trial, testimony was given establishing that the officer doing the paperwork and the one who entered the room were Police Officer [REDACTED] and the Respondent, respectively.

A. He put, say this is your right hand.

Q. His right hand?

A. Yeah.

Q. Okay. So if I was him and I was looking at you it would be this hand right here?

A. Yeah.

Q. So like when where did he put it on your face?

A. Holding my chin.

Q. Holding your chin and with his left hand...

A. He slapped me.

Q. On which side of your face?

A. He slapped me on my, the same left.

Q. On your left or his left?

A. My left.

Q. So on your left, your left is over here.

A. He just went like this, yeah.

Q. Okay.

A. (inaudible)

Q. Gotcha. It would have been on your right hand side of your face?

A. Yes.

When asked what he did next, Hatim replied, "I didn't do nothing, I called him a pig.... I just called him a pig that's it." According to Hatim, the Asian officer who was doing paperwork said nothing at this point. Hatim stated that he said to this officer, "Did you just see what your partner just (inaudible). He was like, 'no' (inaudible)."

According to Hatim, he and his friends arrived at the station house at 10:00 p.m. and remained in the juvenile room until 2:00 a.m. He stated that the "detective" who slapped him "was nowhere to be found" and he did not see him again that night. He further stated that he spoke to a detective named "Mr. Morrison" who told him and his mother (who had been waiting for him outside the room) that there was no detective such as he described. Hatim stated that his mother asked for this officer's badge number and that it was from his badge that he learned the officer's name. He further stated that upon being released he was issued a summons to appear in court for "the fight on the train" and that Daniel, David, and Maurice received the same.

When asked if his mother or sister took pictures of his face after the incident, Hatim replied that pictures had been taken but that they "got deleted." He stated that he was hit with an open hand, but his face did not swell up or develop a bruise afterwards. When asked to describe the force of the slap, Hatim answered, "It was like it hurt you know but I can't describe it, I don't know how to describe it. It was hard to make a bruise. A red mark." Asked to explain why he called the officer a pig, Hatim responded, "Cause he slapped me."

Hatim concurred that an officer called his mother and sister from the station house to inform them of his arrest. He further agreed that his face was already red for a few minutes when his mother arrived. According to Hatim, his face was still red when he got home and a red mark remained there until the afternoon. He stated that it did not hurt and he did not put any ice on it.

According to Hatim, he had never been arrested nor seen any of the officers involved prior to the incident and has not seen any of the officers since the incident.

(DX 1)

Gina Davis

Gina Davis (hereinafter "Davis") is Walter Hatim's mother. In the course of her May 8, 2006 interview with CCRB, she stated that on April 17, 2006 she arrived at the Transit District (TD) 30 station house sometime between 12:00 a.m. and 12:30 a.m. in response to a call that her son had been arrested with some other young boys for fighting on a train. According to Davis, when her son was brought out to the waiting area approximately one hour later, he asked, "Where's that cop who slapped me?" He removed his hat and Davis saw that "his face was all red." During the CCRB interview with Davis, the following questions were asked and answered:

- Q. ...what side of his face was he injured on?
- A. If I'm right I'm not sure.
- Q. If you were looking at him, which of your, left or right?
- A. I think it was the right, I'm not, I'm not sure I want to say, oh I think it was and I think it was his right.
- Q. His right? So if you were looking at him it was on your left maybe? On his face?
- A. Yeah.
- Q. On the right?
- A. On the right.

Davis stated that the redness had a "little fine bump" on it and "it was...something like your handprint."

When asked if she were aware of anything which might indicate that the slap occurred during the fight on the train, Davis replied that her son told her he never actually engaged in the fight physically, although one of the men took a swing at him with a knife and he "like ducked and went back." Davis stated that she did not observe injuries on any of the other boys.

According to Davis, when her son said he had been slapped, "that's when I told the guy I wanted to file the report. And I think I'm supposed to fill out a report. I said I messed up when I said I think. So he took that I really didn't know.... Even though I knew I should have." Davis claimed that a sergeant told her that her son had not been slapped, that he had been "back there" (in the juvenile room) more than once and her son never told him about a slap. Davis stated that her son's response to this was "Since he slapped me you haven't been back there." Davis identified the sergeant's name and shield number as "Marsh" and "794," and stated that he never left the front desk the entire time she was there. Davis further stated that the sergeant told her she could not file a report there and that she should leave and call 311.

Davis recalled that she saw a white, heavy-set male with facial hair wearing a sweat shirt pass by approximately ten minutes before her son was brought out. According to Davis, this description gibed with the one her son gave of the officer who slapped him.

Davis stated that she took pictures of the red mark on her son's face with her picture phone but was later unable to retrieve those pictures. According to Davis, it took two to three days for the redness to disappear. She stated that the mark was red and had bumps on it, but that it was neither bruised nor swollen. She acknowledged that they did

not treat the area with anything nor did they go to the doctor. She further acknowledged that her son was on school break during the time of the incident and did not lose any school days as a result of his injury. (DX 2)

Kimberly Davis

Kimberly Davis (hereinafter “Kimberly”) is Walter Hatim’s sister and the daughter of Gina Davis. During her CCRB interview on May 3, 2006, she informed the investigator that she accompanied her mother to the “precinct” after having received a call requesting that she come and pick her brother up. Kimberly stated that they arrived there around 1:00 a.m. and after waiting for about an hour she decided to go home.

According to Kimberly, when her mother and brother came home, her mother said, “Look at my baby’s face, they hit my baby.” Kimberly looked at her brother’s face and observed that it was “red with a hand print.” When she asked her mother if she had filed a report, her mother told her that she was asked to leave and to call 311 if she wanted to make a complaint. At this point Kimberly decided to call 911 to get the number for the Internal Affairs Bureau, which she called and with which she filed a complaint. (DX 3A contains the “IA Detailed Description” of Kimberly Davis’s call to IAB on April 17, 2006, of which a portion of the text reads, “The officer placed one hand on Mr. Hatim’s chin and smacked him on the cheek with his other hand. Mr. Hatim had a red mark on his right cheek.”)

When asked if she were present at the time of the incident and witnessed the slap, Kimberly responded, “...nobody witnessed it but the police officer back there, but I witnessed his face red with the hand print, I witnessed that.” (DX 3)

Police Officer Gary Stopa

Police Officer Stopa is a seven-year member of the Department who has been assigned to TD 30 for his entire career with the exception of a period of approximately four months in 2006 when he was temporarily assigned to the Queens Task Force. Stopa testified that he currently performs uniform patrol duties at TD 30.

Stopa recalled that in the spring of 2006, he was assigned to anti-crime at TD 30 where he performed plainclothes duties that included enforcement, arrests, and arrest processing. He testified that on April 17, 2006, he was working the fourth platoon (a 1930 by 0405 tour of duty). Stopa explained that he was inside the command preparing to go out on patrol that evening when an arrest came in and he "took that arrest." He agreed that the area in which he was working when the arrest came in is known as the "juvenile room." He stated that four youths were brought into this room and that it was his responsibility to process their arrests. He testified that other people entered and exited the room as they assisted him with the arrest processing paperwork. Stopa recalled that the youths were in the room for a little over three hours. He stated that members of the anti-crime team, including the Respondent, brought the youths into the room. One of the members remained to assist the Respondent with paperwork while the others left the room. He estimated the size of the juvenile room to be approximately 12 feet by 12 feet. Stopa agreed that he and the four youths were the only people who were in the room constantly over the course of the three hours it took to process the arrests.

Stopa stated that he was sitting in front of the desk and had four "juvenile packets" which he needed to fill out in order to process the arrests. The youths were

seated next to one another and directly in front of him at a distance of approximately ten feet "...on a bench in a row, four of them together, chained with a daisy chain, each of them were handcuffed by one arm each."

Stopa described the youths as being "belligerent" and "obnoxious." When the Respondent entered the room, however, which Stopa approximated to have been two hours into the processing, the juveniles "were acting more irate, being loud," and one of the youths, Walter Hatim, began to suck his teeth. The Respondent told him to stop. According to Stopa, when Hatim continued to suck his teeth, the Respondent said, "You better stop that or I'm going to slap the shit out of you." Stopa maintained that he was not looking at the Respondent when this was said, only that he heard it. He agreed that the Respondent was visible to him and that he stood approximately eight feet away from him. While Stopa's view of Hatim, who was facing him, was blocked by the Respondent (who was standing directly in front of the seated Hatim with his back towards Stopa), both of them were in his presence.

When queried as to whether he actually observed anything occur between the Respondent and Hatim, Stopa replied, "I observed [the Respondent's] arm be raised, his left arm." Stopa demonstrated this in the trial room by raising his left arm at the elbow. He could not recall whether the Respondent's hand was open or closed at the time because he had only caught a "glimpse" when he raised his head up. At that point Stopa "saw a hat fly off Hatim's head, and partially his head moved towards my right." Stopa maintained that he did not see the "slap." He stated, "All I saw was the hand move up, and then I heard the kids saying 'Whoa,' like they were all in unison. They yelled out. And I saw a hat fly off and also Hatim's head moved to my right." Stopa testified that

the juveniles' reaction happened "instantaneously. I was glimpsing up and down with my head. I saw the elbow and then a split second, I heard them say 'Whoa.' I saw the hat fly off and also the head movement." He estimated the total amount of time which passed from the point where he saw the arm raised to the reaction of the youths and the hat flying off to be a few seconds.

Stopa testified that the Respondent left the room after this and that Hatim and the other juveniles said to Stopa, "You didn't see that? You didn't see that?" and Hatim added, "The officer just hit me." Stopa saw a supervisor, Sergeant Ortiz, coming up the hallway and approached him. He told Ortiz about the accusation that had been made and Ortiz brought him and the Respondent into a room to discuss what happened. Stopa told Ortiz that Hatim was accusing the Respondent of slapping him in the head. According to Stopa, the Respondent said, "That's bullshit. I never touched him. I never hit him. That's a lie. You know, you can go ask him." Stopa recalled that the Respondent told Ortiz that the youths were being loud, rude, and obnoxious but did not explain why he addressed them in the first place upon entering the room. He further recalled that Ortiz said he would speak with Hatim's mother to find out if her son wanted to do anything about the matter. With that the discussion ended.

According to Stopa, about one half hour later the Respondent brought him aside in the room and told him that he should have come to him instead of going to the sergeant about Hatim's accusation. Stopa recalled that he said to the Respondent, I had to report what the kid said," to which the Respondent replied, "Well, you should have told me so we could have squashed it and taken care of it." When asked if the Respondent made any comments about the four juveniles in regard to their prolonged loudness and his telling

them to be quiet, Stopa replied the Respondent told him that this is how he dealt with kids when they got out of hand, that he had dealt with kids before and that one had to be “aggressive” and ‘slap them around.” In response, Stopa said to the Respondent, “That’s not the way you deal with kids,” and “I wouldn’t do it that way,” by which he explained he meant “intimidating them, bullying them ... being right up to their face.” When asked if the Respondent said to him that slapping the kids was a way he had dealt with them in the past, Stopa stated that he had “mentioned that a few times.” Stopa further explained that the Respondent “just told me that he worked with kids before and this is how you deal with them when they get out of hand.”

Stopa described himself as having “a high level of integrity and honesty” and that when he was transferred from the fifth platoon to the fourth platoon, the Respondent pulled him aside and told him that “this is not how the fourth platoon operates.” According to Stopa, the Respondent told him “This is how we do it, you know, and if you say anything, you know, pretty much it’s your word against ours.” Stopa testified that the Respondent heard that “I have a high level of integrity that I always try to do the right thing. I try not to cut corners. I try to follow the procedures in the Patrol Guide.” According to Stopa, the Respondent told him, “This is how it works. If we take an hour-and-a-half or two-hour meal time, that’s how we do it. And if you’re going to say something, then we got a problem.” When asked by the Court to elaborate on what he means by having integrity, Stopa explained, “It’s doing the right thing when no one’s watching. That’s what I mean.” Stopa agreed that in his seven-year career as a police officer he has consistently tried to perform his duties in such a manner and that he

“adamantly explained” this to the Respondent when he was first transferred to the fourth platoon.

Stopa testified that he worked directly with the Respondent for a few months and that the last time they worked a tour together was approximately one year ago. He agreed that the April 17 incident occurred during the period he had worked with the Respondent. He also agreed that his “shaky” relationship with the Respondent began with their initial conversation about how things are done (in the fourth platoon), and that this conversation took place prior to the April 17 incident.

Stopa testified that he was aware that Hatim’s mother, Gina Davis, had come to the command. He agreed that Sergeant Ortiz mentioned that he talked to her about the incident but he (Stopa) did not know for a fact that this actually happened. He also agreed that he was present from the time Hatim was brought in for processing until the time he was released to his mother. Stopa testified that Hatim was released approximately one hour after his conversation with Sergeant Ortiz and the Respondent regarding Hatim’s allegation. He acknowledged that within that hour the Respondent pulled him aside and spoke to him privately about what had occurred. Stopa stated that he “immediately” went to Sergeant Ortiz in response to Hatim’s protests about being hit. He further stated that upon returning to the juvenile room he told the youths that he had reported the situation to a supervisor. Stopa testified that there was no reaction to this from the youths, although he agreed that their demeanor was calmer than it was before they reported that Hatim had been slapped.

On cross-examination, when asked if he disliked the Respondent, Stopa replied, “I don’t like the way he handles himself.” He acknowledged that he had disagreed with

the Respondent over "tactics" in the past, but denied arguing with him about any unsafe tactics employed by him. He agreed that their conversation about how things were done in the fourth platoon happened on his first day in that platoon.

Stopa testified that he submitted an application for transfer to the Queens Task Force approximately five months after he began working in the fourth platoon. Asked why he continued to work in the unit for five months before requesting a transfer if he found the Respondent and the fourth platoon so disagreeable, Stopa explained that prior to submitting his application he spoke to his commanding officer and supervisor about what was taking place at the command. Specifically, he told them that the unit was "taking prolonged meals" and "working out when they're supposed to be working." He admitted that he did not report this to his captain immediately, but rather, "It took some time for me to have the guts to say it to my commanding officer." He estimated that a few weeks passed before he mentioned anything to his superiors.

When asked by the Court if he knew whether any members of the platoon received CDs, Stopa replied, "I wouldn't know, and I wouldn't care." Asked if it bothered him that rules were being broken for which no one was being disciplined, he responded, "No, if it's between their platoon commander and themselves, I wouldn't butt in." Stopa confirmed that he notified Captain Venturi of TD 30 of the officers' violation of the rules and that to his knowledge no one was disciplined and the unit was kept in tact.

Stopa stated that upon completion of his assignment at the Queens Task Force he was transferred back to TD 30 where he was assigned to the first platoon. He further stated that he has worked in all of the platoons in TD 30.

Stopa testified that the door to the juvenile room was open while the youths were making noise and when the Respondent walked in. He further testified that the supervisor's office was to the right of the juvenile room and the front desk was approximately 100 feet down the hallway from the room.

Stopa acknowledged that he was located approximately ten feet from the youths and he could hear the comments and noise they were making as well as a remark by the Respondent. He did not at any time, however, hear the sound of a slap or hit; he agreed that such a sound would have caught his attention. He conceded that he never actually saw the Respondent hit Hatim.

Stopa further acknowledged that he heard the Respondent say to the youths "I'm going to slap the shit out of you." But during his CCRB interview in September 2006 he did not tell investigators that he heard that statement. During that interview he was asked the following question and gave the following answer:

Q. Was it a table like an interview room?

A. Yes, just like this, and I'm [d]oing my paperwork. I had four sheets of paperwork, four packages. So my head was down here doing paperwork. The four juveniles were in front of me sitting about ten feet away on a bench, all handcuffed. One of the officer[s] I worked [with], Officer Gonzalez, came into the room. The kids made some comments to him. He told them that he didn't like it and to stop. His body was -- his back was towards me. I was still, you know, doing the paperwork. He left the room. And the kid say said, "You didn't see that?" I said, "See what?" "The officer just hit me." So I said, "Okay, I'll be right back." I went to my supervisor, reported to him that the kids made those allegations.

Stopa recalled making that statement but could not recall if he told the CCRB investigators about the Respondent's statement. [The parties stipulated that during this interview, which occurred approximately six months after the incident, Stopa did not tell the CCRB that the Respondent said to the youths "I'm going to slap the shit out of you."]

When asked why he did not tell the CCRB during the September 2006 interview that the Respondent made the statements "let's squash this" and "you have to slap kids around," and "you have to be aggressive with kids," Stopa replied that the CCRB did not ask him "questions that would lead me to that direction" and that he was advised by his attorney "not to voluntarily divulge information." He admitted, however, to being asked about a table and then volunteering a description of the incident without being asked for one.

On redirect examination, Stopa acknowledged that he called the New York City Police Department "PRIDE" line one day after or within hours of the incident on April 18 and some five months prior to his CCRB interview. Upon being shown a summary of that phone call, Stopa recalled stating that he arrested four juveniles that day and brought them into the juvenile room, that the juveniles were sucking their teeth, that the Respondent came into the room, and that Hatim accused the Respondent of slapping him. On further review of the phone call summary, Stopa recalled that the Respondent told Hatim he was going to hit him if he did not stop sucking his teeth. Stopa further recalled that he noticed the Respondent's arm go up and "Mr. Hatim's head -- and hat fly off to my right." Stopa agreed that while he did not mention the Respondent's threat and certain other details of the incident during the CCRB interview, he did mention them during the PRIDE line call which occurred five months earlier and within hours of the incident. He further agreed that he went to his supervisor with all the information regarding the incident.

On re-cross examination, Stopa acknowledged that he gave the following testimony before the CCRB:

P.O. Stopa: With the -- just the way I was positioned, I was doing the paperwork and his body was taking up the space, you know, I did notice his hand, but I didn't hear anything.

Investigator Sims: Right.

P.O. Stopa: Plus I didn't see it move.

Stopa also acknowledged that although he told the CCRB he did not know if the Respondent moved his right or left arm, it was his present testimony at trial that he saw the arm move and he knew which arm it was.

On redirect examination, Stopa agreed that as the Respondent's hand went up Stopa glanced down "For a split second, it might have been a couple of seconds, but I did notice his arm up and I did notice when the kids said, 'Whoa,' that his head went to my right and his hat flew off."

The Respondent's Case

The Respondent called Police Officer Vincent Terrano and Sergeant Daniel Ortiz as witnesses and testified in his own behalf.

Police Officer Vincent Terrano

Police Officer Terrano, a five-and-a-half-year member of the Department, is currently assigned to the anti-crime unit at TD 30 where he works in the fifth platoon. Terrano testified that prior to this assignment he worked in the nighttime anti-crime unit for approximately two years.

Terrano testified that on April 16, 2006 he and his unit were assigned to the anti-crime detail, working a 1930 by 0405 tour. He recalled that at approximately 11:30 p.m.

he was in the command processing the arrest of an unlicensed general vendor when word came of a group of individuals with knives at the Jay Street subway station. Terrano and his partner, Ralph Randazzo, went to Jay Street to assist any officers at the scene; Stopa remained behind to watch Terrano's prisoner.

At Jay Street, Terrano observed one group of four young males and one adult. These individuals, who were interviewed at the scene, said they had had a fight at the train station. According to Terrano, all five individuals, including Walter Hatim, were arrested at the scene for assault with weapons. He testified that he brought Hatim back to the station house where he and the other juveniles were placed in the juvenile room.

Terrano described the size of the juvenile room as approximately 10 by 10 feet to 10 by 12 feet and located 25 to 35 feet into the command on the left-hand side past the front desk. He estimated the front desk to be approximately 20 to 25 feet to the right as one exited the juvenile room. Terrano acknowledged that it was possible from inside the juvenile room to hear someone calling from the front desk and that this "happens all the time."

Once he placed the four youths in the juvenile room, Terrano finished processing his prior arrest, whereupon he was instructed by his supervisor to assist Stopa with the other arrests. He testified that he did so by processing some of the paperwork, typing vouchers, and inputting the arrests into a computer. He recalled that he was in and out of the juvenile room five to ten times over the course of two-and-a-half to three hours. Terrano testified that he spoke to the youths for the purpose of obtaining pedigree information and assisting in the preparation of the desk appearance tickets. When asked to describe their demeanor, Terrano stated that they were "acting up" by "yelling back

and forth to each other, 'Yo, this is bullshit,' information like that. I explained to them, 'This isn't bullshit. This is serious. You guys are in jail.'" According to Terrano, the youths persisted in their behavior. He agreed that in his command it is a common occurrence for juveniles to act up.

Terrano acknowledged that he had interactions with Hatim that evening. However, he denied that Hatim complained to him at any point during the night that he had been slapped by an officer.

According to Terrano, after the parents of the juveniles arrived, he individually escorted each of the youths to the front desk and released them to their parents. He explained that it was done this way so the desk officer would not confuse one individual's paperwork with another's. Terrano confirmed that Hatim was one of the individuals he brought before the front desk. When asked if anyone who had come to pick Hatim up complained to him about a slap in the face, Terrano replied, "Nobody ever complained to me about any slap or anything like [that]." Asked what he would have done if someone had complained, he replied "I would have told my supervisor. My immediate supervisor was right there at the desk. And if he didn't do anything about it, then we would have had to make other notifications." Terrano went on to clarify that the juveniles were brought to their parents then directly to the front desk where he handed the paperwork to the desk officer, and the desk officer in turn issued the desk appearance tickets.

Terrano confirmed that he is familiar with Police Officer Stopa and stated that he worked with him in the same detail for approximately one to one-and-a-half years. He also confirmed that he knows the Respondent and that he worked with both him and

Stopa at the same time on the same team. Based on his observations and in his opinion, Terrano described the relationship between the Respondent and Stopa as "For the most part, they did not get along. Sometimes it became hostile, but for the most part, it was 'I'll ignore you. You ignore me.' But then there were certain instances where it was hostile and you could see the animosity between the two." As an example of the kind of situation that engendered such bad feelings, Terrano stated, "...one of us would be scheduled for a day off on Friday -- we're a small team. There was only four of us, so only one of us can be off at a time. I would be scheduled for a day off on a Friday or one of my other team members would. Officer Stopa would take a late arrest, in which case he has the day tour the next day, and then in turn, one of us would lose out taking the day off. It didn't happen once. It was a pattern of it, it always happened that way." Terrano further stated, "When you go out looking for something just so you can extend your swing to screw the rest of us...that's a problem for us."

Terrano denied that he was disciplined at any time after Stopa arrived for taking a long meal, for working out in the gym when he was supposed to be out in the field, or for any type of misconduct. He further denied that the captain ever addressed the team as a group about such alleged violations.

On cross-examination, Terrano testified that he spent approximately 30 seconds to a minute in the area to which he brought Hatim to his mother. He acknowledged that during that time he observed her speak to her son, but was unaware if she spoke to other police officers in the area about her son. When asked if he would be surprised to learn that Hatim's mother claimed to have spoken to other officers after her son was brought out to her and before she left, Terrano responded, "In the command I would have been

aware of it. When she goes outside the front door, I wouldn't be privy to that information."

Sergeant Daniel Ortiz

Sergeant Ortiz is a 14-year member of the Department currently assigned to TD 30. Prior to his current assignment he worked at Housing Bureau No. 3 and at the 84 Precinct for seven years and four years, respectively. He recalled that on April 16, 2006 he was assigned as the anti-crime sergeant at TD 30, a position he held for a year and a half. Ortiz testified that on that date Police Officer Stopa approached him and stated that one of his juvenile prisoners just got slapped in the face by the Respondent. According to Ortiz, Stopa never said he saw or heard the slap, only that his prisoner complained to him about it. Ortiz then spoke to the Respondent, who denied that he slapped, pushed, or punched anyone. Ortiz stated that he spoke to Stopa again and asked him if he actually saw the Respondent slap the prisoner, and Stopa told him no. He further stated that he asked Stopa where he was when the incident occurred, and Stopa told him he was outside the juvenile room. Ortiz denied that Stopa ever told him he was inside the room with his head down doing paperwork at the time of the incident. "The only thing he stated to me was he was outside the juvenile room,"

Ortiz acknowledged that as part of his supervisory role he was required to ensure that the officers in his unit performed their jobs properly and that proper procedure was followed. He denied knowledge of any disciplinary problems within his unit, such as officers taking extended meals or working out in the gym when they should have been in the field. Ortiz further denied that he issued any command disciplines or made entries to the minor violations log concerning such problems. He did not recall any instances

wherein the captain approached him to discuss discipline within the unit. It was Ortiz's opinion that the unit was a good one to supervise and that the officers in it did their jobs well. When asked if he reported the incident described by Stopa, Ortiz replied, "I didn't think of reporting it." He agreed that based on his familiarity with the Respondent, he believed the Respondent when he told him he did not slap anyone.

On cross-examination, Ortiz acknowledged that while he does not have personal knowledge of Stopa being either inside or outside of the juvenile room, he noted "When he stated the allegation coming from one of the prisoners, I questioned him, I asked him, 'Hey, where was you in relation to this incident?' Right after that he stated to me that he was outside the juvenile room." Ortiz agreed that the juveniles were handcuffed inside the room and could not speak to anyone unless the person was in the room with them. When asked did this not mean that Stopa would have to have been in the room when the juveniles complained of the slap, Ortiz replied, "I don't know. At that point, I don't know if he was in that room or not." He did not recall if Stopa told him that the time between when the slap occurred and when Stopa learned of it was immediate, nor did he remember if he inquired as to this timeframe. Ortiz denied discussing with the Respondent any conversations he may have had with the juveniles when he was in the room with them. According to Ortiz, the only thing he said to the Respondent was, "Did you hit, push or slap any of these kids?" and the Respondent told him no. He acknowledged that the allegation of an officer slapping a 13-year-old child is a serious one. Ortiz testified that in inquiring about the incident, he spoke to the officers involved and eventually to Hatim and his mother. He further testified that it did not occur to him to ask the Respondent what would lead up to such an allegation being made against him.

Ortiz denied knowledge of the Respondent having any conversations regarding the behavior of the youths in the room.

The Respondent

The Respondent is a seven-year member of the Department who has been assigned to TD 30 for his entire career with the exception of a period of approximately one year when he was assigned to Brooklyn Central Booking while on restricted duty. Prior to becoming a police officer, the Respondent mentored inner-city, at-risk youths with several organizations, including Jump Nation, the Juvenile Urban Mentoring Program, Head Start Aspida, and On Your Mark. He testified that he also worked with an organization that dealt with "really hard-core gang kids." He described his experience working with juveniles as "extensive."

The Respondent recalled that on April 17, 2006, he was working a 1930 by 0400 tour in plainclothes assigned to the anti-crime unit when he became involved in the arrest of a group of youths at a subway station. He explained that he and his partner, Police Officer Terrano, were processing a previous arrest when a call came over the radio about a large disturbance involving a knife fight at the Jay Street subway station, which is one stop away from the command. The Respondent testified that he and Terrano, as well as many other officers, responded to the call and assisted in effecting four juvenile arrests and one adult arrest. They also recovered three knives. He acknowledged that Walter Hatim was one of the juveniles arrested.

According to the Respondent, once the four youths were brought back to the command, they were searched and put into the juvenile room. Police Officer Stopa was

assigned the five Jay Street arrests, and the Respondent and Terrano resumed processing their prior arrest. He testified that when he and Terrano had finished processing that arrest, they were asked by supervisors to assist Stopa in the juvenile room with his paperwork because he had many arrests to process.

The Respondent described the juvenile room as being no larger than 12 feet by 12 feet, with one very large desk, two file cabinets, and an L-shaped bench, to which the youths were handcuffed, that runs along a wall. He testified that Stopa was seated at the desk and was facing the juveniles and the door, which was always kept open.

The Respondent testified that the front desk was approximately 20 to 30 feet from the juvenile room and that the youths, who were being very loud, could be heard from this distance. He further testified that the noise they were making was another reason why the supervisor asked him and Terrano to expedite the arrest processing. According to the Respondent, "There was a lot of yelling. You could hear, like, chairs being kicked around the room. So it was pretty much just like kids acting really erratic." He explained that with the exception of the noise coming from the juvenile room, "you could hear a pin drop" at the command that night.

The Respondent stated that when he entered the juvenile room, he asked Stopa how he was coming along with the paperwork and if he needed anything. He further stated that the juveniles were "interrupting" and "acting up" so much so that he was having difficulty making himself understood to Stopa. According to the Respondent, at that point Stopa asked them to be quiet, to no avail; the Respondent then turned around and asked them to be quiet several times. He testified that the youths were kicking and spitting at each other. He further testified that there was a chair in the center of the room

and the juveniles were kicking it back and forth at one another. According to the Respondent, "It was pretty rough."

The Respondent testified that the first thing he said to the youths was to sit down and be quiet. When this failed to settle them down, the Respondent used "a more forceful tone, a demanding tone, and I asked them, you know, 'Sit down and be quiet. You need to take this more seriously. You're in jail. You're not in school.' I remember using the phrase I use with a lot of juveniles, 'You're not in the principal's office. This is the real world. This stuff is going to have an effect on the rest of your life if you don't take it seriously.' For the most part, it didn't work."

When asked what Hatim's response was to his attempts to calm down the youths, the Respondent testified that he "took it as a joke." He explained that Hatim began to suck his teeth, then picked up his hat, put it over the bridge of his nose and head (effectively covering his eyes), leaned back in his seat, "and was like, 'Whatever.'"

With this, the Respondent bent over towards Hatim, pointed in his face, and said "You need to sit down and shut the fuck up and take this more seriously." He testified that his experience with at-risk, inner-city youths has taught him that one often needs to employ a "street mentality" when approaching them, hence the curse. The Respondent testified that his voice was not raised when he said this but that it was "very" authoritative. He denied that his hand ever came in contact with any part of Hatim's body. The Respondent testified that when he addressed him this way and pointed in his face, Hatim sat upright and his hat fell off. In the Respondent's opinion Hatim was taking the situation seriously at that point. According to the Respondent, the other youths

responded by poking fun at Hatim, "pretty much teasing him." The Respondent again denied that he slapped or hit Hatim in any way.

The Respondent testified that once things calmed down in the juvenile room, he turned to Stopa, took some of the paperwork from him and walked out of the room. According to the Respondent, Stopa later approached him and said, "That kid -- the kid you were talking to said you slapped him," to which the Respondent replied, "You were standing right there. Why would you even entertain this? You saw...what happened. You had full view of everything that just went on. You were in the room. Why would you even say something like that?" Stopa then lowered his head and conceded he didn't know what happened.

The Respondent testified that he believed Stopa's relay of Hatim's complaint was an opportunity for Stopa to "extend a little vendetta he has against me personally." In fact, according to the Respondent, "me and him hate each other's guts," and have done so since before the incident. He explained that he and Stopa "had a lot of conflicts" and that Stopa would do things that "hurt" the anti-crime team, such as "take bogus arrests" on the second-to-last tour in order to be able to get the next day off. Because the team was so small this meant that nobody else could extend their weekend. The Respondent contended that Stopa would not participate in the team's "rotation system" wherein arrests were essentially divided amongst its members. He further contended that Stopa, in order to get an "easy 250" (Stop, Question and Frisk Report) and "a number to put in his activity report," would sometimes stop people and pull them off trains for no apparent reason, a practice with which the Respondent was vehemently at odds. He testified that

while he and Stopa argued many times, they never engaged in a physical fight with one another, although “we came close to it a few times.”

On questioning by the Court, the Respondent explained Hatim was doing something young people call the “gangster lean” in which they lean back and put their hat on the tops of their heads as insecurely as possible so that the hat is resting on the bridge of the nose and covering the eyes. He testified that when he bent over and got at eye level with Hatim, Hatim sat up and his hat fell forward onto the floor because it wasn’t securely on his head. The Respondent acknowledged that, chronologically, he changed his tone, cursed at Hatim, pointed at him, and the hat fell off, in that order.

On cross-examination, when the Respondent was asked why he did not mention in his official Department interview of June 20, 2006 that he told Walter Hatim to “shut the fuck up,” he replied that he did not recall being asked about it. When asked if he did not find it important during this interview to bring up anything about being at eye level with Hatim or about his hat falling off or the change in his tone of voice, the Respondent answered, “No.” The Respondent conceded that he did not make reference to any one specific teenager during his official interview. He also conceded that in the interview he could not specify which one of the teenagers was Hatim, yet at this trial he was able to recall that Hatim was the one who addressed him in a disrespectful manner.

The Respondent stated that during his official Department interview he told investigators that he found it “amusing” that the officer who was in the juvenile room with him would come forward with Hatim’s complaint. He explained that he found it “ridiculous” that Stopa would approach him regarding the complaint because Stopa was less than three feet away from him during the encounter and would have seen that no slap

had occurred. The Respondent acknowledged that during his official Department interview he did not identify Stopa as the officer who approached him because "I wasn't asked." When queried as to why, given the serious nature of the complaint against him, he did not give more detailed answers to questions in order to lay out all the facts at his interview, the Respondent replied, "...regardless of who was asking the questions or where I'm being asked the questions, if I find it credible, sure, no problem, I'll give you 130 percent of my answer. But if it's something that I know for a fact that it didn't happen, and the officer there knows for a fact that it didn't happen, you now, and I see that it's just a ploy from a kid trying to get at, you know, somebody for, you know, unfortunately arresting him, catching him in the act of something bad, you know, I'll give straightforward answers quickly and to the point."

When asked whether he believed that Stopa gave testimony in this case simply because the two of them did not get along, the Respondent replied "more than likely I do" and offered the opinion that it was done "as a vindictive tactic."

The Respondent testified that once Hatim and the other youths quieted down, he retrieved some paperwork from Stopa, clarified what needed to be done with it, and walked out of the room. He estimated that Sergeant Ortiz approached him within an hour of the alleged incident and asked him and Stopa to step into a room to discuss it. It was the Respondent's recollection that Ortiz stood by as Stopa spoke of the allegation. When asked why during earlier testimony he did not mention that Ortiz was already there with Stopa when he approached, the Respondent answered, "I wasn't asked. If I was asked, I would have said it."

The Respondent reiterated that he was incredulous about the accusation and that when he realized Stopa was serious about it he said, "You know what? This is bullshit," and walked away from Stopa and Ortiz. The Respondent denied that he was angered, characterizing the feeling instead as one of "disappointment." The Respondent was of the opinion that Stopa's actions were "a low-life tactic," "a ploy" and "pretty cheesy."

The Respondent testified that his primary reason for entering the juvenile room was to assist Stopa with paperwork. However, on his way there the desk sergeant asked him to tell the youths to be quiet because they could be heard throughout the command. The Respondent did not recall referring to the youths as "damn kids" at any point.

When asked why he believed that pointing his finger in Hatim's face and telling him to "shut the fuck up" would be effective, the Respondent admitted that he had done this before and had found it to be effective. When asked how many times he had pointed his finger in the faces of 13-year-olds and told them to shut the fuck up, the Respondent replied, "not a lot of times." He explained that he would "read the individual" and "see what works." The Respondent acknowledged that before he had the one-on-one with him, Hatim said, "You can't tell me what to do." The Respondent testified that all the juveniles were sucking their teeth, but once he adopted a more serious tone of voice, three of them sat up straight and began to pay attention. The fourth, Hatim, refused to listen and went into the "gangster lean," a behavior the Respondent preferred to characterize as "childish" rather than "disrespectful." The Respondent denied that he began to lose his temper with Hatim at this point. He testified that once Hatim was addressed personally in the more forceful tone, he responded by sitting up straight and paying attention.

In response to Hatim's testimony in his CCRB interview that the Respondent took his face with one hand, then raised his arm and slapped his face with the other hand, the Respondent testified, "Well, first of all, I was holding papers I believe in my left hand or -I couldn't tell you what hand. So it was kind of hard for me to actually grab anybody's face and slap with the other." When asked if he had ever brought up the fact that he was holding papers in his hand, the Respondent answered, "I was never asked." Asked if he did not think it important to mention during his CCRB interview that he had something in his hand, given that he was accused of slapping someone, the Respondent replied, "I didn't see the transcript of Mr. Hatim until recently where he said that I grabbed his face with one hand and slapped with the other. So if I would have known that that statement was made, I probably would have clarified it back then." He stated further, "It was not asked at the interview, and I didn't know what his statements were. All I know is that somebody said that I slapped him. At that point I didn't even know who."

In response to Stopa's testimony that he saw him raise his left hand in the air, the Respondent testified that he never raised his hand. In response to Stopa's testimony that he saw Hatim's head go to the left, the Respondent testified that when Hatim leaned back in his seat his head could have gone right or left, but he could not recall which direction.

FINDINGS AND ANALYSIS

The Respondent is charged with using excessive force against Hatim by striking him in the face with an open hand. Based on the evidence presented at trial, the Respondent is found Guilty as charged.

Hatim, his mother and his sister were interviewed by CCRB investigators and because they did not appear at trial their prior interview statements were admitted as hearsay evidence.

Hatim was interviewed by CCRB on May 8, 2006, and he told investigators that after he was arrested for fighting on the subway he and his friends were taken to the station house and placed in a room where they were handcuffed to a chair. He stated that there was also a Chinese police officer (Stopa) in the room doing paperwork.

Hatim further told investigators that one of the arresting officers, "the chubby guy" (the Respondent) entered the room and said "I need something for these damn kids." At that point, Hatim "sucked [his] teeth" at the Respondent causing all the youths to laugh. The Respondent told them to stop laughing and Hatim and his friends once again "sucked their teeth" and the Respondent "put his hand on [Hatim's] face and slapped [him] with the other hand" on the right side of his face. Hatim then frankly told investigators that after being slapped he "didn't do nothing, I called him a pig...I just called him a pig that's it."

Hatim further explained to investigators that the Respondent struck him with an open hand, but it did not cause his face to become swollen or bruised. He stated that he called the Respondent a pig "Cause he slapped me." He added that his face was red from the slap and was still red when he arrived at his home.

Gina Davis, Hatim's mother, told CCRB investigators on May 8, 2006, that she went to the station house after receiving a call that her son was arrested for fighting on the train. When Hatim was brought to her the first thing he asked was "Where's the cop

who slapped me?” and when he removed his hat Davis observed that “his face was all red.”

Immediately after Hatim told her that he was slapped Davis told one of the Officers that she should file a report. A sergeant then told her that when he was in the area where Hatim was located Hatim never told him that he was slapped. Davis stated at that point Hatim responded by telling the sergeant that “Since he slapped me you haven’t been back there.” Davis was then told by the sergeant that she could file a report by calling 311.

Kimberly Davis, Hatim’s sister, told CCRB investigator Sims during a telephone interview on May 3, 2006, that when she saw Hatim’s face when he arrived at home she observed that it was “red with a hand print.” At that point Kimberly decided to call 911 to get the number for the Department’s Internal Affairs Bureau.

On April 17, 2006, the day of the incident, Kimberly called the IAB Command Center to report the incident involving her brother and her report was recorded under Log #06-12378. Her complaint regarding Hatim being slapped stated the following: “The officer placed one hand on Mr. Hatim’s chin and smacked him on the cheek with his other hand. Mr. Hatim had a red mark on his right cheek.

Stopa testified that he was in the room at the time of the incident. He stated that Hatim was seated with the other youths directly in front of him approximately ten feet away and they were being “belligerent” and “obnoxious.” When the Respondent entered the room they were being more irate and loud and Hatim began sucking his teeth. The Respondent told him to stop but he continued to suck his teeth and the Respondent at that point told him ‘you better stop that or I’m going to slap the shit out of you.’”

While Stopa was hearing what was being said he was not looking at them because he was processing arrest paperwork. When he did look in their direction he could see the Respondent, but did not have a clear view of Hatim, who was seated and facing him, because the Respondent was standing directly in front of him. Stopa, however, did observe the Respondent raise his left arm and at that point he “saw a hat fly off Hatim’s head, and partially his head moved towards my right.” The youths who were with Hatim then “instantaneously” said “Whoa” as the hat flew off of Hatim’s head. The Respondent then left the room and Hatim and the youths said to Stopa “You didn’t see that? You didn’t see that? And Hatim added, “The officer just hit me.” Stopa then reported to Sergeant Ortiz the accusation of the slap made by Hatim.

Stopa further informed the Court that about one half hour later the Respondent spoke to him and said that he should have come to him instead of going to the sergeant about Hatim’s accusation. Stopa recalled that he said to the Respondent, “I had to report what the kid said,” to which the Respondent replied, “Well, you should have told me so we could have squashed it and taken care of it.” The Respondent also told him that this was how he dealt with kids when they got out of hand, that he had dealt with kids before and that one had to be “aggressive” and “slap them around.”

Hatim’s hearsay statements, standing alone, gives the Court a frank and direct account of the slap he received from the Respondent while he was in the station house. More importantly, he did not attempt to hide or make excuses for the childish and disrespectful behavior he displayed towards the Respondent. He simply told investigators that he sucked his teeth and laughed at the Respondent and after ignoring

his direction to stop this behavior the Respondent slapped him on the right side of his face.

Davis' and Kimberly's hearsay statements were also informative in support of Hatim's account of the incident. Both women told investigators that they observed Hatim to have a red mark or bruise on the right side of his face. Davis also heard Hatim say when he was first brought to her at the station house, "Where's the cop who slapped me?" The credibility of Kimberly's hearsay statement is enhanced by the fact that after she saw Hatim's face she promptly gave a detailed account of what happened to him to the IAB Command Center on the day of the incident.

Hatim's version of being slapped by the Respondent was also independently and credibly corroborated by Stopa during his testimony at trial. He saw the Respondent raise his arm and then saw Hatim's hat fly off his head and his head move to the right. Stopa did not hear the sound of the slap but he heard the reaction from the youths and Hatim's statement that the Respondent struck him. Stopa immediately reported their accusations to Sergeant Ortiz and further informed the Court of how he was approached by the Respondent and told that he should not have reported the incident and that he has slapped kids before this incident as a method of dealing with them.

Moreover, it seems unlikely that the sound of a slap to the face administered with enough force to cause day-long redness would be inaudible at a distance of ten feet, yet it is Stopa's contention that he did not hear it. However, it was established through testimony at trial that the juveniles were making a lot of noise. It was in fact the Respondent's own testimony that the youths could be heard at the front desk 20 to 30 feet away outside the juvenile room and that they were so noisy he even had difficulty making

himself understood to Stopa inside the juvenile room. It is thus not inconceivable that the noise could have interfered with Stopa's ability to hear the slap, even though he was only about ten feet away from Hatim and the Respondent.

To add to his credibility Stopa called the New York City Police Department's "PRIDE" Line within hours of the incident on April 18, telling them of the juveniles' arrest and the sucking of their teeth and how the Respondent told Hatim that he was going to hit him if he did not stop and that Hatim accused the Respondent of slapping him.

The Respondent during his testimony places himself in the room with Hatim and testified that there was "a lot of yelling" coming from the youths...like acting really erratic" and that they were interrupting him to the point where he was having difficulty making himself understood to Stopa. He told the youths to be quiet and reminded them that they were in jail, but "For the most part, it didn't work." The Respondent stated that Hatim took his attempts to quiet them "as a joke" and Hatim began to suck his teeth and he leaned back in his seat with his hat pulled down over the bridge of his nose "and was like, 'Whatever.'" With this, the Respondent stated that he bent over towards Hatim, pointed in his face, and said "You need to sit down and shut the fuck up and take this more seriously." He testified that his experience with at-risk, inner-city youths has taught him that one often needs to employ a "street mentality" when approaching them, hence the curse. The Respondent testified that his voice was not raised when he said this but that it was "very" authoritative. He denied that his hand ever came in contact with any part of Hatim's body.

The Respondent testified that when he addressed him this way and pointed in his face, Hatim sat upright and his hat fell off. In the Respondent's opinion Hatim was taking the situation seriously at that point and the other youths responded by poking fun at Hatim, "pretty much teasing him."

The Respondent again denied that he slapped or hit Hatim in any way. He also described Stopa's testimony supporting the allegations that he struck Hatim "as a vindictive tactic" because the two of them did not get along since they first worked together.

This Court finds that the Respondent's testimony to be an implausible and self serving explanation of what occurred at the station house. Hatim and his friends were being disrespectful towards him and not responding to his direction to stop. They kept on sucking their teeth and laughing and as the evidence shows he smacked him. In addition, this Court finds it very difficult to believe the Respondent's attempt to convince this Court that Hatim's chair fell forward from leaning against the wall and his hat fell off his head and his head tilted in the same direction that it would have gone as a result of a slap.

This Court also finds that if Stopa had made the story up about the Respondent slapping Hatim he likely would have claimed to have seen the downswing of the Respondent's arm or at least to have heard the sound of a slap; he did not do this. And it is difficult to imagine what Stopa would have to gain by concocting a story, as he was already at odds with the surrounding culture and such an act could only have served to exacerbate his situation. Indeed, in making a false allegation Stopa would risk putting his own career in jeopardy.

Accordingly, this Court finds the Respondent Guilty as charged.

PENALTY

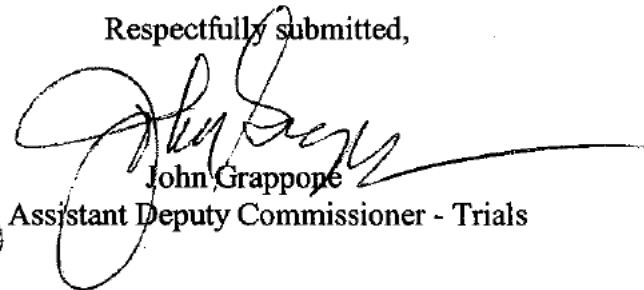
In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 2, 2001. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

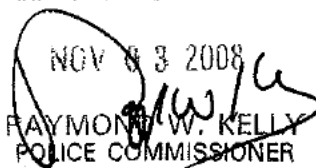
The Respondent has been found Guilty of using excessive force against Walter Hatim in that he wrongfully struck him in the face with an open hand. While this Court does not condone the disrespectful behavior exhibited by Hatim towards a police officer, it also does not condone the unnecessary and excessive force exhibited by the Respondent in response to that behavior.

Accordingly, this Court recommends that the Respondent forfeit a penalty of ten vacation days.

Respectfully submitted,


John Grappone
Assistant Deputy Commissioner - Trials

APPROVED

NGV 8 3 2008

RAYMOND W. KELLY
POLICE COMMISSIONER